

Balak Ram v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 8 September 2014 · WRIT - C No. 47898 of 2014 · **Writ disposed; request to be examined as per Supply Code, 2005.**

HEADNOTE

On a writ that an electric wire obstructed the petitioner's constructions, the Division Bench disposed of the petition directing respondent no. 3 to examine the request—on the petitioner's offer to pay the required charges—in accordance with law and to pass appropriate orders or issue directions to the Executive Engineer as per the Electricity Supply Code, 2005, without deciding the obstruction or any alleged unauthorised street projection on merits.

FACTUAL SUMMARY

Balak Ram filed Writ-C No. 47898 of 2014 before the Allahabad High Court, aggrieved that an electric wire was obstructing his constructions. He offered to deposit whatever charges were required for adjustment of the wire. Counsel for respondents no. 2 and 3 submitted that the petitioner's construction appeared to project onto the street and may be unauthorised, but that if the petitioner was prepared to make the payments, the competent authority may consider the request.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

adjustment of electric wire obstructing construction

HOLDING

Respondent no. 3 shall examine the petitioner's request for adjustment of an obstructing electric wire, on the petitioner's offer to pay the required charges, in accordance with law and pass appropriate orders or issue necessary directions to the Executive Engineer concerned as per the Electricity Supply Code, 2005. ¶ 1

FLAG order cites Electricity Supply Code, 2005 without a clause number

PRINCIPLE TAGS

relegate-to-statutory-remedy On a writ that an electric wire obstructed the petitioner's constructions, the Division Bench disposed of the petition directing respondent no.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE OBSTRUCTING ELECTRIC WIRE IS TO BE SHIFTED OR ADJUSTED, WHETHER THE PETITIONER'S CONSTRUCTION PROJECTS UNAUTHORISEDLY ONTO THE STREET, AND WHAT CHARGES ARE PAYABLE

Left to respondent no. 3 / Executive Engineer to examine in accordance with the Electricity Supply Code, 2005 ¶ 1